

AUG 14 1992

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLBOQ

STIPULATION FOR IMPOSITION OF CONDITIONS

IN THE MATTER OF THE DISCIPLINARY PROCEEDING AGAINST THE LICENSE TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF DUANE HORNER, LPC, LICENSE NO. 339,

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Duane Horner, LPC ("Respondent"), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter set forth in this Stipulation.

2. The Board of Licensed Professional Counselor Examiners granted Respondent a license to practice professional counseling in Colorado on April 13, 1991. Respondent was issued license number 339. Respondent has been licensed to practice as a professional counselor since that date and is so licensed at this time.

3. On or about February 24, 1992 the Respondent, on his own initiative, informed the Board of certain events involving a former client which occurred after termination of any therapeutic relationship, and prior to his licensure as a licensed professional counselor, the propriety of which had been questioned by another unrelated therapist.

4. In order to resolve any concerns over his conduct or his standing as a licensee, Respondent has proposed that he undergo counseling, professional education and practice supervision to assure the Board of his continuing professional ethics and standards. The Board has accepted Respondent's proposal and the parties intend that this Stipulation shall state the terms of agreement.

5. The Board and the Respondent, by this Stipulation hereby agree to the following terms and conditions with respect to Respondent's license to practice professional counseling in Colorado. The term of this agreement shall be for a period of one (1) year commencing on the effective date of this Stipulation.

During the term of this agreement, Respondent, as a condition of the validity of his license to practice professional counseling, shall comply with all conditions of this Stipulation.

6. The conditions are:

a. Respondent's practice of professional counseling and psychotherapy, including any supervision of or consultation with other psychotherapists or professional counselors by Respondent, must be supervised by a Board-approved supervisor ("practice supervisor"), who shall report in writing to the Board in accordance with this Stipulation.

(i) The practice supervision must consist of individual face-to-face contact that occurs at least once each month or such other interval as the practice supervisor deems necessary. During supervision, Respondent and his practice supervisor must review and discuss each of Respondent's active cases at least once during each session of practice supervision, to determine that Respondent is practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice and with reasonable skill and safety to his clients.

(ii) The practice supervisor is authorized to examine and shall examine such client records and case files maintained by Respondent as the practice supervisor deems appropriate to determine whether or not Respondent is practicing psychotherapy both in accordance with generally-accepted professional standards of practice and with reasonable skill and safety to his clients.

(iii) The practice supervisor must report the results of his/her supervision to the Board in writing and send a copy of each report to the therapist (see paragraph 6.b. below) and Respondent. The practice supervisor must submit her/his first report within five (5) days of the end of the first full month of the term of this Stipulation. The practice supervisor shall submit subsequent reports within five (5) days of the last day of every third month (i.e., on a quarterly basis) for the remainder of the term of this Stipulation.

(iv) If the practice supervisor is of the opinion that Respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted professional standards of practice or with reasonable skill and safety to his clients, the practice supervisor shall report her/his opinion and the basis or bases for that opinion to the Board. The practice supervisor shall make that report in writing and within forty-eight (48) hours of forming her/his opinion. The practice supervisor shall send a copy of that report to the therapist (see

paragraph 6.b. below) and Respondent when she/he sends the report to the Board.

(v) Respondent and his practice supervisor shall enter into a written contract for supervision. The practice supervisor shall provide a copy of that written contract to the Board with the submission of the first report. The contract must contain a provision stating that the practice supervisor has received and read a copy of this Stipulation; understands the duties and responsibilities s/he is undertaking as Respondent's practice supervisor.

(vi) The Board hereby approves Susan B. Pass, LCSW, as the initial practice supervisor. Respondent may change approved practice supervisors by notifying the Board in writing at least thirty (30) days in advance of the identity of the new practice supervisor and by furnishing to the Board a copy of a new agreement for supervision which complies with subparagraph (v) above. The Board shall be deemed to have approved any new supervisor unless the Board notifies the Respondent in writing within thirty (30) days of the receipt of the notice of change of its objection to the proposed supervisor and the reason(s) for objection. If the Board objects, Respondent shall propose a different supervisor for the Board's approval within thirty days.

b. Respondent shall undergo professional counseling with an individual approved by the Board ("therapist"), who both conducts the therapy and reports in writing to the Board in accordance with this Stipulation.

(i) The professional counseling shall consist of individual, couples or group therapy sessions, which shall occur in a frequency to be determined by the therapist, but in no event less frequently than once each month.

(ii) The therapist must report to the Board in writing both the progress of the therapy and whether or not Respondent is able to practice professional counseling and psychotherapy with reasonable skill and safety to his clients and must send a copy of each report to the practice supervisor and Respondent. The therapist must submit her/his first report within five (5) days of the last day of the first full month of the term of this Stipulation. The therapist shall submit subsequent reports within five (5) days of the last day of every third month thereafter (i.e., on a quarterly basis) until therapy is terminated or twelve (12) months have elapsed, whichever first occurs.

(iii) In the first report, the therapist must state that s/he has received and read a copy of this Stipulation, and must state that s/he understands the duties and responsibilities s/he is undertaking as Respondent's therapist.

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(iv) If the therapist is of the opinion that Respondent is unable to practice professional counseling and psychotherapy with reasonable skill and safety to his clients, the therapist shall report her/his opinion and the basis or bases for that opinion to the Board. The therapist shall make that report in writing and within forty-eight (48) hours of forming her/his opinion. The therapist shall send a copy of that report to the practice supervisor and Respondent when s/he sends the report to the Board.

(v) By agreeing to this Stipulation, Respondent is granting only a limited waiver of his psychotherapist-patient privilege. Respondent authorizes the therapist to generally discuss Respondent's progress and compliance during therapy, resolution of identified problem areas and opinions regarding Respondent's ability to practice professional counseling, but does not authorize the therapist to discuss specific conversations during treatment sessions or release or reveal treatment notes or records.

(vi) Respondent or his therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than thirty (30) days before the date of termination. The notice shall state the reason for the termination. In the event the termination is for a reason other than the termination of the need for therapy, Respondent shall notify the Board of his replacement therapist, who shall be a qualified licensee under C.R.S. §12-43-101, et seq. and who shall agree to submit the reports required by this agreement.

(vii) The Board hereby approves Michael Pass, L.C.S.W., as Respondent's therapist.

c. Respondent shall participate in classes and/or workshops designed to educate mental health practitioners in legal and ethical issues related to the practice of psychotherapy or professional counseling. He shall be required to participate in at least fifteen (15) hours of such education during the period of this Stipulation. Written verification of completion of this educational requirement must be provided to the Board.

d. Respondent shall pay all costs or expenses incurred for the practice supervision, psychotherapy, and education set forth above.

e. Respondent is responsible for the reports due under this Stipulation and shall take reasonable steps to assure that his practice supervisor and his therapist report to the Board in accordance with this Stipulation.

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7. This Stipulation shall take effect on acceptance and signature by the Board ("effective date").

8. Any violation by the Respondent of the conditions set forth in this Stipulation or any report from the practice supervisor or the therapist that the Respondent is unable to practice with skill and safety to his client may, in the discretion of the Board, constitute grounds for disciplinary action or other legal action pursuant to C.R.S. §§ 12-43-701 to 12-43-711, (1991). This Stipulation shall be admissible as evidence in any proceeding or hearing held to determine whether or not Respondent has complied with this Stipulation and/or C.R.S. §§ 12-43-701 to 12-43-711 (1991).

9. If a violation of this Stipulation is proven after hearing, the Board or a court may take into consideration the terms and conditions of this Stipulation prior to taking any action pursuant to and authorized by C.R.S. §§ 12-43-701 to 12-43-711, (1991).

10. This Stipulation shall become a public record.

11. All time periods and obligations stated in this Stipulation run only while Respondent is licensed as a professional counselor in Colorado; they are tolled and suspended at all other times.

12. In the event Respondent moves to another jurisdiction during the term of this Stipulation, Respondent shall notify the Board, in writing, within thirty (30) days of his move, notifying them of his new address and the date on which he relocated.

13. Respondent enters into this Stipulation voluntarily, without coercion, and after being fully advised both as to his right to a hearing and as to the consequences of this Stipulation.

14. Respondent enters into this Stipulation for the purpose of settling the issues presented by the complaint before the Board. Neither this Stipulation nor any statement of Respondent contained in this Stipulation is intended to be used or shall be admissible in any other proceeding or for any purpose, except as stated in paragraphs 8 or 9 above.

15. No agreement, understanding, representation, or interpretation not contained in this Stipulation and Order may be used to vary or to contradict its terms.


DUANE HORNER, LPC
Respondent

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COLORADO STATE GRIEVANCE BOARD

Clair Villano
By: CLAIR VILLANO, Chairperson

DATED: Aug 14, 1992.

APPROVED AS TO FORM

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